

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX----- X  
ELVIS PERALTA,

Claimant,

-against-

CITY OF NEW YORK,

Respondent.  
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Index No.:

**PETITION**

**JOHN K. KOUROUPAS, ESQ.**, an attorney duly admitted to practice law in the courts of the State of New York, affirms the truth of the following under the penalties of perjury:

1. I am associated with the law firm of **SIM & DEPAOLA, LLC**, attorneys for the Claimant, **ELVIS PERALTA**, in the above-captioned matter, and am fully familiar with the facts and circumstances herein based upon my investigation and conversations with my client.
2. I submit this affirmation in support of the instant motion for an Order granting leave to have the Notice of Claim of the Claimant served upon the Respondent, **CITY OF NEW YORK**, deemed timely served *nunc pro tunc*.
3. The Claimant, **ELVIS PERALTA**, asserts that on or about October 10, 2016, at approximately 5:00 P.M. in the vicinity of the intersection of East 169th Street and Fox Street, County of Bronx, State of New York, Claimant was illegally searched and seized by members of the New York City Police Department, hereinafter referred to as "NYPD" officers, who had no probable cause to do so. Claimant had not committed any crime or violation of the law. On the above stated date, time and location, claimant, Elvis Peralta,

was falsely arrested by NYPD Police Officers under Docket No. 2016BX044143. Please note that claimant is currently unaware of the NYPD officers' identities, but intends on filing a lawsuit against any NYPD officer is named in the criminal court complaint that was filed against claimant under Docket No. 2016BX044143, as well any NYPD officer who was present during the unlawful arrest, assaults and batteries committed against claimant. Multiple NYPD officers committed gratuitous assaults and batteries against claimant's person, including but not limited to punching claimant in the face, while he was handcuffed in a police vehicle, dragged out by his feet, dropped to the ground, kicked, punched and then violently picked up by his handcuffs. Claimant was then taken to a local NYPD Precinct and criminally processed. NYPD officers used claimant's head to open the door at the precinct. Claimant was also dragged around the precinct floor while rear handcuffed. Claimant was unlawfully held in custody for over three (3) days or approximately seventy-three (73) hours, until he was released Bronx Criminal Court. While in police custody, Claimant was taken to Lincoln Hospital for treatment for his injuries. Claimant was maliciously prosecuted for said incident from the date of arraignment until all charges against him were favorably dismissed on June 4, 2018. A printout of the certificate of disposition is annexed herein and incorporated by reference as **Exhibit B**.

4. Claimant requests that he be permitted to file a late Notice of Claim as to the malicious prosecution claims. A copy of the Proposed Notice of Claim is annexed hereto and incorporated by reference as **Exhibit A**.

5. Moreover, it should be noted that the Federal 1983 Claim does not have a requirement of filing a Notice of Claim and has a three (3) year statute of limitations. See Owens v. Okure, 109 S. Ct. 573 (1989); see also Feuer v. NYCHHC, 170 Misc.2d 838

(1996) *citing Felder v. Casey*, 487 U.S. 131 (1988); *Welch v. State*, 286 A.D.2d 496; *Zwecker v. Clinch*, 279 A.D.2d 572 (2<sup>nd</sup> Dept. 2001); *Lopez v. Shaughnessey*, 260 A.D.2d 551; *Corvetti v. Lake Pleasant*, 227 A.D.2d 821; *Lui v. New York City Police Dept.*, 216 A.D.2d 67; *Lawles v. Buffalo*, 177 A.D.2d 1007 (4<sup>th</sup> Dept. 1991); *Omni Group Farms, Inc. v. Cayuga*, 178 A.D.2d 977 (4<sup>th</sup> Dept. 1991).

6. As will be shown, *infra*, this application to allow the Claimant, ELVIS PERALTA, to file the Proposed Notice of Claim should be granted because Defendants acquired actual notice of the essential facts constituting the NY Claims within ninety (90) days of their accrual. Moreover, there would be no prejudice to the Defendants herein, and the Claimant has a reasonable excuse for filing this Notice of Claim late.

**I. THE RESPONDENT CITY OF NEW YORK HAD ACTUAL KNOWLEDGE OF THE ESSENTIAL FACTS OF THE NY CLAIMS**

7. NY Municipal Law Section 50-e(5) reads, in pertinent part:

“Upon application, the court, in its discretion, may extend the time to serve a notice of claim specified in paragraph (a) of subdivision one.

The extension shall not exceed the time limited for the commencement of an action by the claimant against the public corporation. In determining whether to grant the extension, the court shall consider, in particular, *whether the public corporation or its attorney or its insurance carrier acquired actual knowledge of the essential facts constituting the claim within the time specified in subdivision one or within a reasonable time thereafter.*

The court shall also consider all other relevant facts and circumstances, including...*whether the delay in serving the notice of claim substantially prejudiced the public corporation in maintaining its defense on the merits*” (emphasis added).”

8. The courts have an inherent power, pursuant to NY Municipal Law Section 50-e, to grant leave to serve a late notice of claim. See *Cohen v. Pearl River*, 51 N.Y.2d 256

(1980) In Beary v. City of Rye, 44 N.Y.2d 398 (1978), the Court of Appeals explained that the standards of NY Municipal Law Section 50-e were modified so that the grounds upon which a court may allow a late notice of claim were expanded, and the time for filing a notice of claim was lengthened.

9. Claimant, ELVIS PERALTA was falsely arrested on October 10, 2016, at approximately 5:00 P.M., in the vicinity of the intersection of East 169<sup>th</sup> Street and Fox Street, County of Bronx, State of New York. Claimant, ELVIS PERALTA, was illegally searched and seized by New York City Police Department hereinafter referred to as “NYPD” officers who had no probable cause to do so. Claimant had not committed any crime or violation of the law. Claimant had multiple assault and batteries committed to his person. Claimant was then taken to a local NYPD Precinct and criminally processed. After being in police custody over the course of three (3) days. This release was subject to later court appearances, all of which Claimants attended until obtaining dismissal on or about June 4, 2018. Thus, between the time the Claimant was questioned and detained, and the time that the Claimant’s case was heard, the Respondent, **CITY OF NEW YORK**, had actual knowledge of the essential facts constituting the NY Claims.

10. Both the First and Second Departments have repeatedly held in cases involving civil claims of false arrest and imprisonment that where, as here, the NYPD and District Attorney’s Office investigated the alleged crime(s), “knowledge of the essential facts constituting the claims within the statutory period can be imputed to the City.” Grullon v. City of New York, 222 A.D.2d 257, 258 (1<sup>st</sup> Dept. 1985), *citing* Taturn v. City of New York, 161 A.D. 580, 581 (2<sup>nd</sup> Dept. 1990); *see also* Justhiano v. NYCHA, 191 A.D. 252 (1<sup>st</sup> Dept. 1993); Matter of Rlese v. County of Nassau, 141 A.D.2d 649 (2<sup>nd</sup> Dept. 1988);

Winzel v. County of Suffolk, 92 A.D.2d 545 (2<sup>nd</sup> Dept. 1983); Ansaldo v. City of New York, 92 A.D.2d 557 (2<sup>nd</sup> Dept. 1983).

11. Additionally, where a municipal Respondent possesses records which set forth the essential facts constituting a claim, courts generally hold that permission to file a late notice of claim should be granted. See Rodriguez v. NYCH&HC, 270 A.D.2d 110 (1<sup>st</sup> Dept. 2000); Melendez v. City of New York, 245 A.D.2d 564 (2<sup>nd</sup> Dept. 1997) (reversing the trial court's denial of claimant's application to file a late notice of claim); Guzman v. County of Westchester, 208 A.D.2d 925 (2<sup>nd</sup> Dept. 1994); Montalvo v. Town of Harrison, 151 A.D.2d 652 (2<sup>nd</sup> Dept. 1989); Reisse v. County of Nassau, 141 A.D.2d 649 (2<sup>nd</sup> Dept. 1989); see generally Tatum v. City of New York, 161 A.D.2d 580 (2<sup>nd</sup> Dept. 1990)

12. Here, the Respondent, **CITY OF NEW YORK**, had knowledge of the essential facts since the NYPD, through its employees and agents, were present at the scene of the incident and, in fact, actively perpetrated the NY Claims alleged to be sustained by the Claimant. The officers who arrested Claimant in the instant matter had memo books, including detailed DD5 complaint follow ups that they are required to use to memorialize the facts of the case as part of proper NYPD police procedure. The arresting officer must then provide all relevant facts used to believe there is probable cause to the District Attorney's office so that the D.A.'s office can properly draft an accusatory instrument for criminal charges to be prepared. Here, all but the filing of an accusatory instrument occurred because Claimant was arrested, detained, and processed in this matter. Most criminal cases in Bronx County last longer than one year. Your Claimant has attached hereto as **Exhibit C**, an authorization for the Respondents to unseal the case and research the arrest. After reviewing the instant matter with their officers, the Respondent will be

hard pressed to show that the police officers have documented the progress of the instant case or even know if it was dismissed.

13. Moreover, the Respondent has investigated the allegations that form the basis for the NY claims and have been in possession of records that adequately set forth the facts underlying the NY claims, including detailed police reports and records. Thus, the Respondent is in possession of records that give them actual knowledge of the essential facts of the NY claims, which they obtained through their own investigation, and which were created by their own employees and agents. Therefore the Respondents have ample information to use in this case to refresh their recollection in this matter.

**II. THE RESPONDENT CITY OF NEW YORK WOULD NOT SUFFER ANY PREJUDICE BY ALLOWING THE PROPOSED NOTICE OF CLAIM TO BE FILED**

14. The Claimants' delay in filing a timely notice of claim in this case does not substantially prejudice the Respondent's ability to defend the NY Claims on the merits.

In the Matter of Gerzel v. New York City Health & Hospital Corp., 117 A.D.2d 549 (1<sup>st</sup> Dept. 1986), the court held that "[t]he only legitimate purpose served by [NY Municipal Law] Section 50(e) is to protect the public corporation against spurious claims and to assure it an adequate opportunity to explore the merits of the claim while information is still readily available." Id., at 550 *quoting* Teresta v. City of New York, 304 N.Y. 440, 443. Additionally, in Hayden v. Incorporated Village of Hempstead, 103 A.D.2d 765 (2<sup>nd</sup> Dept. 1984), the court held that the mere passage of time does not constitute substantial prejudice. See also Holmes v. City of New York, 189 A.D.2d 676 (1<sup>st</sup> Dept. 1993 (holding that possession of records by the municipal corporation constituted actual notice and defeated a claim of prejudice by the municipality).

15. It is respectfully submitted that this case is precisely the type of situation which the legislature envisioned when it empowered the court with the discretion to permit a late filing of a notice of claim to a public corporation. Having suffered through the indignity of a false arrest and imprisonment, with all of its attendant stress, expense and humiliation, it would certainly be highly prejudicial to the Claimants to be denied in their application to submit the Proposed Notices of Claims. Also, whether or not the herein motion is granted, the Respondent will be defending against Claimants' Federal 1983 Claim, which will require the same investigative resources and activities, such as deposing the Claimants and the individually-named defendants in the above-referenced matter.

16. Thus, the Respondent, **CITY OF NEW YORK**, would not be unduly prejudiced by being compelled to defend a case where the delay in filing is less than the statute of limitations for the NY Claims, which is one (1) year and ninety (90) days. See Sarjoo v. NYCH&HC, 270 A.D.2d 110 (1<sup>st</sup> Dept. 2000) (noting that a court may grant a plaintiff permission to serve a late notice of claim so long as the application for such permission is filed prior to the expiration of the applicable statute of limitations).

### **III. THE CLAIMANT HAS A REASONABLE EXCUSE FOR THE DELAY IN FILING A TIMELY NOTICE OF CLAIM**

17. A reasonable excuse for the delay in filing a timely notice of claim should be presented by a claimant in an application for leave to serve a late notice of claim, but is not dispositive. See Reisse v. County of Nassau, 141 A.D.2d 649 (2<sup>nd</sup> Dept. 1988) (stating that all relevant facts must be considered despite the fact that the reasonableness of the petitioner's excuse of the delay is debatable); Matter of Gerzel v. New York City Health & Hospital Corp., 117 A.D.2d 549 (1<sup>st</sup> Dept. 1986) (stating that the claimant's failure to

present a more reasonable explanation is without significance given the City's failure to show substantial prejudice).

18. Here the claimant, ELVIS PERALTA was fighting the false arrest charges against him until June 4, 2018, when the case was dismissed. Upon the dismissal of the criminal case, plaintiff made multiple attempts to obtain the proper paperwork to file the case. Once your affirmant was provided with the dismissal papers and the pictures of the injuries inflicted by the police, the instant petition was filed.

19. Simply stated, the Respondent **CITY OF NEW YORK** had notice of the essential facts underlying the NY Claims within the statutory ninety (90) day period. They had actual knowledge of these facts from their own investigative efforts, and through the actions and records of their own employees and agents. Finally, there has been no claim of substantial prejudice made by the Respondent. Conversely, it would be the Claimants that would be substantially prejudiced if this motion were to be denied, in that it would prevent him from bringing an otherwise meritorious set of NY Claims.

**WHEREFORE**, it is respectfully requested that the within application be **GRANTED** in all respects, and Claimant, ELVIS PERALTA's proposed Notice of Claim, as annexed hereto, be deemed timely served upon the service of these papers as to all of the claims made therein, including the Federal 1983 Claims and the NY state law claims, and for such other and further relied as to this Court deems just and proper.

**No application has been made in this or any other court for the same or similar relief.**

Dated: Bayside, New York  
May 21, 2019

Yours, etc.,

**SIM & DEPAOLA LLP**



**BY: JOHN K. KOUROUPAS, ESQ.**

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